

GZ: 2022-0.296.352 dated May 16, 2022 (Case Number: DSB-D179.309)

[Note from the editor: Names and companies, legal forms and product designations, addresses (including URLs, IP and email addresses), file numbers (and the like), etc., as well as their initials and abbreviations may have been abbreviated and/or altered for pseudonymization reasons. Obvious spelling, grammar, and punctuation errors have been corrected.]

DECISION

RULING

The Data Protection Authority decides on the application of the Federal Minister of Finance (Applicant) dated March 29, 2022, for the approval of the administrative agreement pursuant to Art. 46 para. 3 lit. b GDPR with the U.S. Public Company Accounting Oversight Board (PCAOB) regarding the regulation of the transfer of personal data as follows:

- The requested administrative agreement, visible in the annex ("Annex 1.pdf") and forming an integral part of this ruling for the transfer of personal data to the U.S. Public Company Accounting Oversight Board, is approved.

Legal bases: Art. 46 para. 3 lit. b, Art. 51 para. 1, Art. 57 para. 1 lit. r, and Art. 58 para. 3 lit. i of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter: GDPR), OJ No. L 119 of May 4, 2016, p. 1.

REASONING

A. Submissions of the Parties and Procedural History

The Data Protection Authority was informed by a letter from the Austrian Audit Oversight Authority (APAB) dated March 3, 2022, about the planned conclusion of an administrative agreement between the Applicant and the U.S. Public Company Accounting Oversight Board (PCAOB) regarding the transfer of personal audit documents by the APAB.

Subsequently, the Applicant submitted an application for the approval of an administrative agreement pursuant to Art. 46 para. 3 lit. b GDPR for the transfer of personal data to the PCAOB to the Data Protection Authority on March 29, 2022.

After prior consultation with the expert group responsible for international data transfers, the Data Protection Authority obtained an opinion from the European Data Protection Board regarding the administrative agreement in question. The European Data Protection Board issued a positive opinion on the guarantees for the protection of the rights and freedoms of natural persons whose data is transferred to the PCAOB, following a vote of its members from May 3 to May 10, 2022. The acceptance of this decision was confirmed on May 13, 2022, by the Secretariat of the European Data Protection Board.

B. Findings of Fact

The procedural history summarized in point A is the basis for the findings of fact, along with the documented submissions of the Applicant.

Assessment of Evidence: The facts presented are undisputed and are based on the submissions of the Austrian Audit Oversight Authority and the Applicant. The mentioned administrative agreement is documented in the file.

C. From a legal perspective, it follows that:

According to Art. 46 para. 1 GDPR, controllers or processors may only transfer personal data to recipients in a third country if there is no decision pursuant to Art. 45 para. 3 of the same law, provided that they have implemented appropriate safeguards and that enforceable rights and effective legal remedies are available to the data subjects.

The United States constitutes a third country within the meaning of Chapter V of the GDPR. In the absence of an appropriate adequacy decision from the European Commission, the transfer of personal data to recipients in the United States must therefore be based on appropriate safeguards within the meaning of Art. 46 GDPR. It should be noted that the partial adequacy decision for the United States, known as the "EU-U.S. Privacy Shield," which was annulled by the European Court of Justice, was not applicable to data transfers between authorities (see the former Implementing Decision (EU) 2016/1250 of the Commission, OJ L 2016/207, p. 1, and its annulment by the judgment of the European Court of Justice of July 16, 2020, C-311/18).

Appropriate safeguards for the transfer of personal data to recipients in third countries may be included

in provisions that are to be incorporated into administrative agreements between authorities or public bodies and that include enforceable and effective rights for the data subjects, according to Art. 46 para. 3 lit. b GDPR – subject to approval by the competent supervisory authority. The administrative agreement submitted by the Applicant with the PCAOB constitutes such a transfer instrument requiring approval.

According to Art. 46 para. 4 GDPR, the European Data Protection Board was to be consulted.

According to Art. 64 para. 2 GDPR, any supervisory authority may request that a matter of general applicability or with effects in more than one Member State...

examined by the European Data Protection Board in order to obtain an opinion.

The European Data Protection Board issues an opinion on the matter presented in accordance with Art. 64 para. 3 of the cited law, unless it has already issued an opinion on the same matter.

In this context, the European Data Protection Board has already issued Opinion 05/2021 regarding the guarantees for the protection of personal data contained in the administrative agreement between the French auditing oversight authority (“Haut Conseil du Commissariat aux Comptes”) and the PCAOB, and has stated that the agreement meets the requirements of the GDPR.

The administrative agreement submitted by the applicant is, apart from non-objectionable formal changes, essentially the same as the agreement reviewed by the European Data Protection Board in its Opinion 05/2021. Against this background, and following the receipt of a positive opinion from the European Data Protection Board as a result of the voting by its members from May 3 to May 10, 2022, there are no indications for the data protection authority that the present administrative agreement does not provide adequate protection for the transfer of personal data to the PCAOB.

The present administrative agreement was therefore to be approved in accordance with Art. 46 para. 3 lit. b in conjunction with Art. 57 para. 1 lit. r as well as Art. 58 para. 3 lit. i of the GDPR.

A more detailed justification can be omitted, as the application was fully granted, in accordance with § 58 para. 2 of the Administrative Procedure Act.

The request for the payment of fees is omitted in light of § 2 no. 1 of the Fee Act 1957.

Appendix [Note from the editor: not reproduced here]